

9.	22CV0137	SCOTT NEFF VS. PAMELA ROSEN ET AL
ENFORCE SETTLEMENT AGREEMENT		

This is a motion to enforce a Settlement Agreement in this partition action. The parties have sold the shared property and the funds are being held in escrow pending resolution of this motion. Plaintiff asks the Court to enforce the Settlement Agreement and order an equal split of the funds resulting from the sale.

Defendant argues that she has the right to offset the 50/50 split of funds provided for in the Settlement Agreement with additional claims for costs, such as the value of certain personal property, an unanticipated mortgage loan balance and overdue mortgage loan payments from the time of the Settlement Agreement to the time of the sale, any foreclosure fees resulting from overdue mortgage payments, any amounts left in escrow, refunds due for overpayments, and outstanding utility bills.

The first, un-numbered paragraph of the Settlement Agreement provides: In consideration of the terms, covenants, conditions and releases of this Agreement, the Parties hereto agree as follows:

- a) The parties shall proceed with the sale of the subject property in accordance with the terms set forth herein.
- b) Proceeds from the sale of the subject property shall be divided equally between the parties, after deducting all sale-related expenses.
- c) The Parties shall reasonably cooperate to ensure completion of the settlement.

Paragraph 1(b) provides a General Mutual Release by All Parties (emphasis added):

The Parties acknowledge that all matters arising out of the claims set forth above and any others are fully compromised and settled. The Parties, on behalf of themselves, their heirs, spouses, executors, administrators and assigns, partners, officials, directors, officers, shareholders, affiliates, employee benefit plans, representatives, servants, employees, agents, attorneys, insurers, subsidiaries, parents, divisions, branches, units, affiliated organizations, successors, predecessors, assigns, and all persons acting by, through, under or in concert with them, past or present, **hereby releases and forever discharges each other and releases from any and all claims, demands, arbitrations, actions, or causes of action**, charges, complaints, lawsuits, claims, liabilities, obligations, promises, agreements, controversies, injuries, damages, actions, causes of action, suits, rights, demands, judgments, claims for relief, indebtedness, costs, losses, debts and expenses (including attorney's fees and costs actually incurred), of any

nature whatsoever, whether in law or in equity, known or unknown, suspected or unsuspected, actual or potential, which the Parties now have, owns, or holds possesses, or claims to have, own, hold or possess against each other, **whether or not relating to the known or unknown**, asserted or unasserted, suspected or unsuspected, arising out of, and **in any way connected with the aforementioned disputes.**

It is understood and agreed that this Agreement may be pleaded as a full and complete defense to, and the Parties understand and represent that it may be used as the basis for and injunction against any action, suit, or other proceeding based on allegations, claims, and/or causes of action covered by this Agreement.

Paragraph 1(c) provides a Waiver of Unknown and Unanticipated Claims:

The releases described above are full and final releases applying to all losses, including but not limited to damages, costs, expenses, and attorneys' fees, incurred by said Parties, arising out of or in any way connected with the above-described matters. It is the intention of the Parties, in executing this Agreement, that the same shall be effective as a bar to each and every claim, demand, and cause of action, by said Parties based upon the above-described matters, and said **Parties knowingly, voluntarily, and expressly waive any and all rights and benefits otherwise conferred by the provisions of section 1542 of the California Civil Code** which states as follows:

A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.

The Parties to this Agreement expressly consent that, notwithstanding section 1542 of the California Civil Code, this Agreement shall be given full and final effect according to each and all of its express terms and conditions, including those related to unknown and unsuspected claims, demands, and causes of action. This release specifically includes any and all allegations of wrongdoing, whatsoever, with respect to the loan listed above. The Parties acknowledge and agree that this waiver is an essential and material term of this Agreement, and, without such waiver, this Agreement would not have been entered into.

Paragraph 4 of the Settlement Agreement states that "The parties agree that this Agreement may be enforced by a court of competent jurisdiction, upon ex parte motion, as a judgment pursuant to Code of Civil Procedure Section 664.6."

The Settlement Agreement appears to have been executed by both parties on June 30, 2025.

At the hearing on March 6, 2026, the Court granted the motion to enforce the settlement agreement and ordered the Parties to split the proceeds held in trust evenly after deductions for sale-related expenses, which includes sharing of any overpayments, refunds, or funds held in escrow. The Court further ordered a full accounting of the proceeds and expenses from the sale to be equally shared prior to the final distribution. Full accounting was to be filed within 30 days of that court date.

On April 15, 2026, Defendant filed a Request for Further Hearing Regarding Plaintiff's Motion to Enforce Settlement, wherein she informed the Court that despite the Court's order to provide Defendant with a full accounting of all refunds received after close of escrow regarding the property within 30 days, Plaintiff only provided Defendant with one statement from the lender reflecting a refund of approximately \$3,000.

At the hearing on June 5, 2026, the Court ordered Plaintiff to provide an accounting by June 12, 2026. Parties were ordered to file briefs before July 24, 2026. To date, the Court is only in receipt of Defendant's Statement of Outstanding Issues in Connection with Plaintiff's Motion to Enforce Settlement.

Defendant confirms that she received the Accounting Declaration by Scott Neff (the "Neff Declaration") on June 12, 2026, which included copies of two checks, one for \$1,072.23 (which Defendant had previously been provided a copy of) and one for \$1,968.56 (which Plaintiff never previously provided), for a total of \$3,040.79.

Defendant asserts the Neff Declaration does not address the issue of the refund of nearly a year's worth of homeowners insurance premiums, which Plaintiff would have received after the closing. Defendant further contends there are several material misstatements of fact within the Neff Declaration, including any agreement over a generator.

The Neff Declaration provides that an initial agreement was reached prior to the Settlement Agreement, but Defendant reneged on the agreement. As the Parties entered into the Settlement Agreement, the generator issue was encompassed in it, thereby waiving any claim. Defendant asserts there was no agreement between the Parties regarding the generator prior to the Settlement Agreement. Defendant asserts that it belonged to Defendant and she intended to remove it from the property prior to escrow. After the Settlement Agreement was entered into, Plaintiff took the generator off the property.

Defendant asserts that on November 24, 2025, Plaintiff agreed that he would pay Defendant \$4,150 of his sale proceeds to account for the increased mortgage balance (\$3,150 constituting one half of the \$6,300 increased balance) and the generator (\$1,000). Plaintiff thereafter reneged on his agreement to pay for the increased loan balance and generator.

July 24, 2026
Dept. 9
Civil Tentative Rulings

Defendant requests the following payments from Plaintiff which should be paid directly from Mr. Fry's trust account to Defendant before any money is distributed by Mr. Fry to Plaintiff:

1. \$3,150 constituting one half of the foreclosure fees and increased loan balance due to Plaintiff's nonpayment of the mortgage after the Settlement Agreement was signed
2. \$1,000 for Defendant's generator
3. \$1,520.40 constituting one half of the refunds that he has received per the Neff Declaration which provides Plaintiff received \$3,040.79 after the close of escrow
4. \$574.38 constituting one half of utility bills that Defendant received after closing

Defendant seeks a total of \$6,244.78 plus one half of any insurance premium refund that was sent to Plaintiff after close of escrow. Defendant further requests the Court order Plaintiff to appear at the hearing to provide information about the insurance premium refund that he received after close of escrow.

The Court finds that the Parties entered into the Settlement Agreement on June 30, 2025. Per Defendant's Statement of Outstanding Issues, there was no agreement regarding the generator prior to signing the Settlement Agreement. As such, Defendant waived her right to any claim for the generator pursuant to the mutual release in paragraph 1(b) and the waiver of unknown or unanticipated claims in paragraph 1(c) of the Settlement Agreement. Additionally, Defendant waived her right to any foreclosure fees, increased loan balances, and utility bills pursuant to the terms of the Settlement Agreement. As such, Defendant's request for these fees is denied.

Defendant's request for \$1,520.40 (one half of refunds Plaintiff received after the close of escrow) is granted. The Court grants Defendant's request for one half of any insurance premium refunds Plaintiff received after the close of escrow upon proof. Plaintiff is ordered to provide all information regarding any insurance premiums that were received after close of escrow to Defendant at or before the hearing on July 24, 2026.

TENTATIVE RULING #9:

APPEARANCES ARE REQUIRED FRIDAY, JULY 24, 2026, AT 8:30 AM IN DEPARTMENT NINE.

DEFENDANT'S REQUEST FOR \$1,520.40 IS GRANTED. DEFENDANT'S REQUEST FOR ONE HALF OF ANY INSURANCE PREMIUM REFUND PLAINTIFF RECEIVED AFTER ESCROW IS GRANTED UPON PROOF. PLAINTIFF IS ORDERED TO PROVIDE PROOF OF ANY INSURANCE PREMIUM RECEIVED AFTER ESCROW TO PLAINTIFF AT OR BEFORE THE HEARING ON JULY 24, 2026.

DEFENDANT'S REQUESTS FOR ONE HALF OF THE FORECLOSURE FEES, INCREASED LOAN BALANCE, AND UTILITY BILLS ARE DENIED. DEFENDANT'S REQUEST FOR REIMBURSEMENT OF THE GENERATOR IS DENIED.